1908

Executive Order

RAINIER NATIONAL FOREST

WASHINGTON

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Rainier National Forest as modified by the Proclamation of October 23, 1911, be further modified by eliminating therefrom the following described lands, in the State of Washington:

In T. 12 N., R. 7 E., Secs. 7 and 8, S. ½ SW. ¼ of Sec. 9, SE. ¼ and S. ½ SW. ¼ of Sec. 10, S. ½ of Sec. 11 and 12, Secs. 13 to 23, inclusive, N. ½ of Secs. 24 and 27, NW. ¼ of Secs. 28 and 29, NW. ¼ SE. ¼, N. ½ SW. ¼ and N. ½ of Sec. 30;

In T. 12 N., R. 8 E., Lots 1, 2, 3, 4 and 5 of Sec. 1, SW. ¼ SW. ¼ of Sec. 7, SE. ¼ of Sec. 9, S. ½ of Sec. 10, NE. ¼, S. ½ of Sec. 11, N. ½ and SW. ¼ of Sec. 12, lot 4 and W. ½ of Sec. 14, Secs. 15 and 16, SE. ¼ NE. ¼ and lots 1 to 16, inclusive, of Sec. 17, Sec. 18, lots 7, 8, 9 and 10, and N. ½ of Sec. 19, lots 5, 6, 7 and 8, and N. ½ of Sec. 20, N. ½ of Sec. 21 and NW. ¼ of Sec. 22;

In T. 12 N., R. 9 E., N. ½ NE. ¼ and NW. ¼ of Sec. 5, Sec. 6, and N. ½ NW. ¼ of Sec. 7;

In T. 13 N., R. 9 E., N. ½ SE. ¼, N. ½ and SW. ¼ of Sec. 1, NE. ¼ and S. ½ of Sec. 2, S. ½ of Sec. 9, E. ½, NW. ¼, and N. ½ SW. ¼ of Sec. 10, Sec. 11, W. ½ W. ½ of Sec. 14, E. ½, S. ½ NW. ¼, and SW. ¼ of Sec. 15, Sec. 16, E. ½ of Sec. 17, NE. ¼ and S. ½ of Sec. 20, Sec. 21, NE. ¼ NE. ¼, W. ½ E. ½ and W. ½ of Sec. 22, NW. ¼ NW. ¼ of Sec. 23, NW. ¼ of Sec. 27, Sec. 28, N. ½ and SE. ¼ of Sec. 29, S. ½ SE. ¼ of Sec. 31, S. ½, and lots 1, 2 and 4 of Sec. 32, and NW. ¼ of Sec. 33;

Willamette Meridian.

It appearing that a portion of the lands excluded from the Rainier National Forest as aforesaid is embraced in an existing withdrawal that should not now be revoked or modified, and it further appearing proper and necessary in the interest of equal opportunity and good administration that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of the existing withdrawal, shall be open to actual settlers only under the provisions of the homestead laws from and including nine o'clock a. m., standard time, on the 9th day of May, 1914, until and including the 7th day of June, 1914, and thereafter to entry and disposition under any and all of the public land laws applicable thereto: Provided, that the rights of the State under the provisions of the Act of March 3, 1893 (27 Stat., 592), shall not be abridged in so far as any of such lands are affected thereby. Unsurveyed

lands are not subject to the provisions of said Act, but in the absence of a prior valid adverse right, the preference accorded the State thereby, where the township has been surveyed and the plat thereof filed while the lands were reserved for forestry purposes, will attach immediately upon the restoration of such lands to selection and entry under the general land laws of the United States and continue for sixty days. The State therefore in such case may, subject to lawful settlement rights initiated prior to nine o'clock a. m., standard time, June 8, 1914, and maintained until that date, within sixty days from and including such date, exercise the preference right accruing to it under the provisions of the aforesaid act.

Persons who go upon any of the lands to be restored as herein provided and perform any act of settlement thereon from and including the date hereof until nine o'clock a. m., standard time, May 9, 1914, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, and those having preferences to make entry under the provisions of the Act of Congress approved June 11, 1906 (34 Stat., 233), will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights or preferences, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
28 March, 1914.

[No. 1908.]